

AI Ethics Assignment 2: Comparing Responsible AI Policy and Regulations

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In 2026, the global landscape for responsible AI policies in the context of governmental regulations remains fragmented. Many jurisdictions have implemented various policies and regulations with differing degrees of success. This paper focuses specifically on enforcement mechanisms within AI regulatory frameworks. Without rigorous and meaningful enforcement mechanisms, regulations have a higher probability of being ignored by stakeholders. This paper explores how Canada, the United States, the European Union, China, and Brazil have implemented enforcement mechanisms into their respective regulatory frameworks.

Canada

Canada enforces AI through existing statutes such as PIPEDA, the Canadian Human Rights Act, the Competition Act, and sector-specific regulations in finance, healthcare, and transportation rather than any dedicated AI law (Parliamentary Information and Research Service, 2025; Field Law, 2024).

Enforcement is indirect: the federal Privacy Commissioner investigates and audits, but relies on recommendations and Federal Court proceedings for remedies, limiting the speed and severity of corrective action. Human rights tribunals, the Competition Bureau, and sector regulators can act when AI causes harm, but none regulate AI systems directly (Parliamentary Information and Research Service, 2025; Field Law, 2024). They respond to outcomes rather than proactively governing AI systems. Provincially, Alberta, B.C., and Quebec run parallel private-sector privacy regimes, creating jurisdictional complexity for organizations operating across multiple provinces.

The federal Directive on Automated Decision-Making binds government departments using AI in administrative decisions, requiring impact assessments and human oversight, but it is an administrative policy instrument only and does not extend to the private sector. Canada lacks algorithmic accountability frameworks, high-risk system oversight, and AI-specific liability mechanisms (Attard-Frost, 2024; Bokuma, 2026), meaning victims of AI-related harm must pursue claims through existing legal channels that were not designed with AI in mind.

Bill C-27, which included the proposed Artificial Intelligence and Data Act (AIDA), would have introduced three new core offense provisions regarding the creation, training, and use of AI specifically, however the bill was annulled when Parliament was prorogued in early 2025. Consequently, the typical enforcement sequence currently follows: complaint > investigation > administrative order > tribunal review > court enforcement.

The United States of America

The U.S. has no single AI regulator. Enforcement is fragmented across branches and levels. Existing federal agencies apply their mandates to AI: the FTC targets deceptive practices, the EEOC covers algorithmic discrimination, and the FDA oversees AI in medical devices. The Department of Justice and sector-specific bodies like the CFPB and SEC have similarly begun applying existing authority to AI-related conduct in their domains. Executive orders can direct agency priorities, but carry no permanent force.

Joe Biden's 2023 AI Executive Order was rescinded by the Trump administration early the following year, signaling how vulnerable AI policy is to shifts in executive leadership

(White House, 2023). Congress has not enacted comprehensive federal AI legislation, leaving enforcement reliant on statutes written long before AI existed.

Courts are increasingly addressing regulatory gaps by interpreting existing copyright, tort, and civil rights law through AI-related litigation, with courts beginning to set meaningful precedent around issues like deepfakes, automated decision-making, and model training data. States are the most active lawmakers, with California, Colorado, and Texas advancing bills on high-risk systems and algorithmic transparency (Engler, 2023).

This decentralized approach means enforcement strength varies significantly depending on jurisdiction, industry, and the specific harm involved, creating a compliance patchwork that impacts companies, particularly affecting those operating nationally.

The European Union

The European Union's Artificial Intelligence Act (EU AI Act), which entered into force on August 1, 2024, represents the world's first comprehensive legal framework governing artificial intelligence. Rather than taking effect immediately, the AI Act follows a phased implementation schedule extending through 2027 (European Parliament & Council of the European Union, 2024). Enforcement of the regulation is structured as a layered system involving both EU-level and national-level institutions, each with distinct roles and powers.

The European AI Office, fully operational August 2025, is the central authority overseeing General-Purpose AI models, coordinating with national regulators, and leading cross-border enforcement. Each Member State must designate National Competent Authorities

handling both pre-market certification and post-deployment surveillance. However, as of mid-2025, only a minority of member states had fully established both authorities, raising concerns about enforcement consistency across the bloc. Three advisory structures (the AI Board, Scientific Panel, and Advisory Forum) support regulatory coherence across jurisdictions, with the Scientific Panel playing a particularly important role in assessing systemic risks posed by large-scale models. Penalties are tiered: up to 7% of global turnover for prohibited practices, 3% for general non-compliance, and 1% for misleading authorities. The EU AI Act also establishes post-market monitoring obligations and whistleblower protections, reinforcing its enforcement architecture beyond initial compliance checks (European Commission, 2024).

Implementation remains uneven, with concerns that many national authorities lack the technical capacity and resources needed for effective, ongoing AI oversight and enforcement. Obligations continue rolling out in stages until 2027.

The People's Republic of China

Unlike the EU's rules-based regulatory framework grounded in market oversight and risk classification, China's enforcement model is more centralized and administratively driven. It is a combination of national strategy and targeted sectoral regulation, administered through a centralized governance structure with limited independent oversight. The 2017 New Generation AI Development Plan set the ambition of global AI leadership by 2030 (State Council, 2017, p. 6), framing AI as a strategic national priority and establishing the policy foundation for subsequent regulatory action.

Enforcement mechanisms flow primarily from targeted regulations: the 2022 rules on algorithmic recommendation systems, the 2022 regulations on deep synthesis (deepfakes), and the 2023 Interim Measures for Generative AI Services together form a layered ruleset for specific AI applications. The Generative AI Measures require providers to align outputs with Core Socialist Values, avoid content threatening national security or social stability (Cyberspace Administration of China, 2023, Article 4), conduct security assessments before public deployment, and label AI-generated material transparently (Cyberspace Administration of China, 2023, Article 4). Data governance obligations require legally sourced training data and respect for intellectual property (Cyberspace Administration of China, 2023, Article 4).

Enforcement is administered primarily through the Cyberspace Administration of China, working alongside the Ministry of Public Security and sector-specific regulators. Notably, China requires security reviews and registration for generative AI services before they reach the public. This is a pre-market clearance mechanism absent in most Western frameworks.

Compliance is framed around both technical standards and ideological conformity, and enforcement can be swift and significant, distinguishing China's enforcement model from the predominantly complaint-driven approaches used in North America.

Federative Republic of Brazil

Brazil's approach differs significantly from China's centralized regulatory model, and more resembles that of Canada and the United States. Brazil currently enforces AI-related harms through existing law rather than dedicated AI legislation. The Penal Code is applied by analogy: AI-assisted fraud, deepfake pornography, and defamation are prosecuted under adapted criminal provisions, with AI treated as the instrument of the offense, rather than as a regulated technology in its own right (Senado Federal, 2026). Recent legislative updates have specifically criminalized AI-generated fake nudity and increased penalties for AI-assisted defamation (Agencia Senado, 2025), demonstrating that targeted amendments are being used to address AI harms while a comprehensive framework remains pending.

Law enforcement use of AI is regulated through Ordinance 961/2025, which requires judicial authorization for algorithmic access to confidential data and prohibits real-time biometric surveillance in public spaces (Agencia Brasil, 2025), with narrow exceptions for locating missing persons or executing arrest warrants (Agencia Brasil, 2025). Consumer protection and data privacy obligations under Brazil's General Data Protection Law (LGPD) also apply to AI systems handling personal data, with the National Data Protection Authority (ANPD) serving as an active enforcement body in this space. The standard enforcement sequence is: police investigation > prosecution > court adjudication under recognized criminal categories.

Brazil's dedicated AI governance framework, Bill 2338/2023, remains pending — expected to reach a final vote in 2026 (Senado Federal, 2026). Modeled on the EU AI Act, it will introduce risk-based classification, mandatory algorithmic impact assessments,

and human oversight requirements for high-risk systems (Agencia Senado, 2024), and centralized enforcement with meaningful financial penalties for non-compliance.

Which country or countries have the most robust policies and regulations?

Arguably, the EU has the most robust policies and regulations of the 5 regions in question. However, it may be more accurate to say that it is the least problematic region. China also has robust enforcement mechanisms, and though one could make the claim that the State may have a vested interest in prioritizing certain policies and penalties over others, this is largely true for all nations. As has been discussed above, every region or country has its own enforcement issues to varying degrees.

Key Differences

Although each jurisdiction approaches AI governance differently, several broad enforcement patterns emerge. Canada's enforcement model tends to be complaint-driven rather than proactive (Attard-Frost, 2024). This differs significantly from the EU AI Act, which is more regulatory and proactive. The United States is relying extensively on state level frameworks and aggressive litigation under existing consumer protection and criminal laws. China's enforcement process is highly centralized, requiring registration, supervision, content controls, and other administrative actions prior to and during development, deployment, and integration, in an effort to minimize the number of compliance breaches. Their AI governance system is dissimilar to most other foreign strategies, as it concentrates more on social stability and governmental control. Brazil, while still considering their own comprehensive legislation, operates on a level similar to the United States, but with more emphasis from oversight bodies and more explicit

language around compliance breaches for existing frameworks, positioning it somewhere between Canada and the European Union regarding enforcement.

Which policy or regulation is the most consistent across the countries you chose?

Although the specifics of regulations vary from region to region, there are some common themes. Many AI governance frameworks have common principles such as transparency, accountability and risk management. However, the enforcement component of governance is not as unified among regions, as has been discussed above.

From AI users' and developers' perspectives, which countries' policies and regulations are the most helpful? The most challenging?

Regulations of AI in China are arguably the most challenging due to strict content and compliance-based regulations. The Interim Measures provide that the AI providers shall be responsible as the producers of online information content (Cyberspace Administration of China, 2023, Article 9). It is understood that companies that create AI technologies have a legal obligation to monitor and control the outputs of their systems. Based on the available evidence, the EU regulatory framework appears to be the most comprehensive given intent, thoughtfulness, effort, and adoption rate, balancing the concerns of users, developers, regulators, and the public most equitably. Again, adoption remains somewhat fragmented in all regions, including the EU.

Future Opportunities for AI Governance

Due to the further development of artificial intelligence technologies, a significant amount of new regulations will have to be proposed by governments to manage any emerging

risks. As an example, experts point to issues associated with misinformation, deepfake technology, and personal data use during AI training systems. The World Economic Forum recommends that governments formulate policies which will address ethical issues and social risks of emerging artificial intelligence technologies (World Economic Forum, 2023).

As AI technologies are gaining more significance, international collaboration will be required to create universal guidelines on how AI can be regulated responsibly.

Conclusion

In conclusion, the 5 regions we looked at: Canada, The United States of America, The European Union, The People's Republic of China, and Federative Republic of Brazil, have all given some degree of regulatory thought to AI governance and enforcement. Adoption, success rates, compliance, and enforcement considerations vary from region to region. There does not seem to be a high level of consistency in approaches across the regions we studied. This is not surprising. Regulations struggle to keep up with the speed of innovation. AI is a new and rapidly developing technology whereas regulations tend to be bound by slower moving bureaucracies. These challenges also present opportunities for improvement in the global AI regulatory landscape.

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